
Appeal Decision

Site visit made on 4 August 2026

by Richard Snow BA(Hons) DipTP MRTPI

an Inspector appointed by the Secretary of State

Decision date: 07 September 2026

Appeal Ref: 6011373

202 Mansfield Road, Selston, Nottinghamshire NG16 6BB

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by David James against the decision of Ashfield District Council.
 - The application Ref is V/2026/0010.
 - The development proposed is construction of new dormer bungalow.
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Decision

1. The appeal is dismissed.

Application for costs

2. An application for costs was made by David James against Ashfield District Council. This application is the subject of a separate decision.

Preliminary Matter

3. On 17 August 2026 a new National Planning Policy Framework ('the Framework') was issued replacing the version of the Framework published in December 2024. The parties were invited to comment and the comments received have been taken into account in the determination of the appeal.

Main Issue

4. The main issue for the appeal is the effect of the proposed development on the character and appearance of the area.

Reasons

5. The appeal site consists of land forming part of the garden of 202 Mansfield Road, a single storey property positioned towards the rear of its curtilage. The site is located at the junction of Mansfield Road and Portland Road and is highly prominent as a consequence. From a high point adjacent to 2a Portland Road, land levels across the site fall generally towards Mansfield Road.
6. The Mansfield Road frontage consists primarily of two-storey properties flanking the south-eastern side of the road. As a bungalow set well back from the road frontage, no 202 is, in these respects, an anomaly in the street scene.
7. The south-western side of Portland Road contains a variety of chalet-bungalows and two-storey houses, generally set below road level behind extensive roadside trees and hedging. A substantial area of open space flanks the opposite side of the road, creating a spacious, open character along the road and around its junction

with Mansfield Road. This open character is furthered by the properties around the junction being set-back from the road frontages, and the undeveloped nature of the appeal site itself.

8. The Jacksdale, Underwood, Selston Tomorrow (JUS-t) Neighbourhood Plan (2017-2032) (the NP), describes the character of Selston as being formed by two-storey brick-built houses set in short terraces or as semis and notes that bungalows do not reflect local character. Development is identified as being arranged in perimeter blocks with buildings fronting the street, and gardens contained to the rear. The NP identifies that lines of sight play a strong role in defining street characters and identifies Portland Road specifically as an example. Policy NP2 of the NP specifies that development should respect local character. It confirms that in Selston, development should, amongst other things, reinforce the existing street pattern and long sight lines.
9. The proposed dwelling would be sited forward of no 202, closer to both the Mansfield Road and Portland Road frontages. The property would be a split-level dwelling, with accommodation across three levels including within the roof space where two flat roofed dormer windows would face Mansfield Road. To its rear, much of the site would accommodate a large parking and manoeuvring area, with the property's garden being located to the front.
10. In views of the appeal site from Mansfield Road around the road junction, the proposed dwelling would be an incongruous addition to the street scene as a consequence of its siting and proximity to the Portland Road frontage. Its prominence on the corner would detract from the open character around the junction.
11. In views along Portland Road towards Mansfield Road, the proposal would extend beyond the established building line, interrupting the line of sight along the road and would be an obtrusive incursion into the street scene. The proposed low boundary treatment along the Portland Road frontage of the site would open up views of the proposed property along the street scene and the dwelling would be a prominent and incongruous addition to it, harming the open character of the road approaching the junction.
12. As a consequence of the above, the siting and alignment of the proposal would neither reflect the predominant characters of Mansfield Road or Portland Road described above.
13. The appellant relies heavily on the screening afforded by a boundary hedge, which currently encloses the site on both road frontages to lessen the visual impact of the proposed dwelling. However, the long-term retention and maintenance of this hedgerow could not be assured with any certainty and the proposal includes the removal of sections along the Portland Road frontage. Given the proposed dwelling's close proximity to the hedge, it is likely that future occupiers would seek to reduce its height to improve outlook and amenity space. I am accordingly not persuaded that this feature justifies the inappropriate siting described above. It is suggested that the dwelling is positioned as proposed as there is nowhere else on the site it could be located. Given my concerns above, I do not find this a convincing reason to allow the appeal.
14. Whilst the appellant advances that design detailing, including materials and the ridge height may be reflective of nearby properties, these matters do not overcome

my concerns in respect of its incongruous siting. The absence of concerns regarding the living conditions of neighbouring occupiers, parking and access arrangements, the retention of trees and lack of technical objections are all neutral factors in the decision.

15. Examples of other development approved by the council have been provided by the appellant. It is suggested that these demonstrate inconsistencies in decision making and that the council has, in these other cases, allowed development where openness would be affected. I have limited details of these cases before me and insufficient information to determine whether they constitute directly comparable cases. I cannot therefore attribute them positive weight in favour of the appeal.
16. Taking account of all of the above, the proposal would be contrary to the defining characteristics of Selston set out in the NP as described above and would present as an overly prominent and incongruous addition to both the Mansfield Road and Portland Road street scenes, detracting from the openness of the junction and the open sight lines along Portland Road. As such, the proposal would unacceptably and significantly harm the character and appearance of the area and therefore conflicts with Policy NP2 of the NP and Policies ST1 (a and b) and HG5 of the Ashfield Local Plan Review (2002) (the ALPR) which collectively confirm that development will be permitted where it would not adversely affect the character and quality of the environment and where its design is acceptable in terms of appearance, scale and siting.

Other Matters

17. The proposal would provide benefits to the local economy during the construction phase and would deliver a family dwelling on a small site within an existing settlement. These benefits attract weight in favour of the proposal.
18. In evidence, the appellant rehearses the planning history of the site and the evolution of the current proposals whilst expressing frustration with the council's pre-application advice. Such matters are for the appellant and council to resolve and do not form part of my consideration of this appeal which I have assessed on the merits of the proposal before me.

Planning Balance

19. I have found that the proposal would conflict with Policies ST1 and HG5 of the ALPR and Policy NP2 of the NP. These policies are generally consistent with the Framework in so far as it seeks well-designed places which are visually attractive and sympathetic to local character. Therefore, the conflict with these policies should be given significant weight in this appeal.
20. Policy S4 of the Framework sets out that development proposals within settlements should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects when assessed against the national decision-making policies in the Framework.
21. Policy DP3.1 of the Framework confirms that proposals should respond to their context so that they integrate with and enhance their surroundings; such as through the arrangement of buildings. For the reasons above, the proposal would fail to respond appropriately to its surroundings and therefore conflicts with this policy of the Framework. Policy DP3.3 confirms that development proposals

should be refused if, without clear justification, they conflict with paragraph 1 of Policy DP3 and that substantial weight should be given to compliance with relevant development plan policies when assessing the design quality of proposals. In these circumstances, Policy S4.2 of the Framework confirms that the benefits of approving development are likely to be substantially outweighed by adverse effects.

22. Taking all of the above into account, I find that the benefits of the proposal would be substantially outweighed by its adverse effects when assessed against the decision-making policies of the Framework. As such, Policy S4 of the Framework does not point to permission being granted in this instance.

Conclusion

23. For the reasons given above, the proposal conflicts with the development plan as a whole and there are no material considerations, including the Framework, that indicate that a decision should be made other than in accordance with it. I therefore conclude that the appeal should be dismissed.

Richard Snow

INSPECTOR